

**RESOLUTION NO. \_\_\_\_\_****ENTITLED: "A RESOLUTION PERMITTING THE POSSESSION OF OPEN CONTAINERS WITHIN THE DOWNTOWN DEVELOPMENT DISTRICT BOUNDARIES FOR THE "SANTA 0.5K" TO BE HELD ON DECEMBER 3, 2022."**

WHEREAS, Section 5.12.110(D) of the Municipal Code permits the possession of open containers of wine and malt beverages within the boundaries of the downtown development district between the hours of 8:00 a.m. and 10:00 p.m. from the Thursday preceding Memorial Day to the Monday of Labor Day of each calendar year;

WHEREAS, under Section 5.12.110(D), the governing body may modify by resolution the restrictions imposed on the periods of time and the boundaries of special areas or districts;

WHEREAS, the Cheyenne Downtown Development Authority requests the possession of open containers of wine and malt beverages within the boundaries of the downtown development district be permitted for the purpose of the "Santa 0.5K" to be held on Saturday, December 3, 2022, from 1:00 p.m. to 2:00 p.m.;

WHEREAS, shopping locally creates a multiplier effect through direct, indirect and induced spending which boosts the local economy and creates more local wealth and jobs;

WHEREAS, a number of studies illustrated on the website of American Independence Business Alliance have shown a forty-eight percent (48%) return to the community occurs when consumers spend locally;

WHEREAS, the event organizers will comply with any and all laws, rules and regulations to ensure the safety of the community;

WHEREAS, adherence to the following requirements shall be required for participation by alcohol vendors and consumers when open containers are permitted as designated herein:

1. The only containers authorized for alcoholic beverages in the special district downtown area's public spaces, for the day specified herein, shall be plastic cups. Glass containers are strictly prohibited.

2. No outside alcoholic beverage, wine or malt liquor may be brought into or consumed within the open container area and any violation of this provision shall constitute a violation of the City's open container prohibition and may incur additional civil or criminal liability.

3. Nothing herein shall be interpreted to authorize the possession of open containers of alcoholic liquor or malt beverages in or on motor vehicles.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, the possession of open containers of wine and malt beverages within the boundaries of the downtown development district shall be permitted for the “Santa 0.5K”, during the dates and times designated herein.

PRESENTED, READ, AND ADOPTED this \_\_\_\_\_ day of \_\_\_\_\_, 2022.

\_\_\_\_\_  
Patrick Collins, Mayor

(SEAL)

Attest:

\_\_\_\_\_  
Kristina F. Jones, City Clerk